

24CV06332 Ivan Zuniga Hernandez vs Judith Share Bay

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-07

Motion: Motion to Compel

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Tentative Ruling: Ivan Zuniga Hernandez vs Judith Share Bay

Case Number

24CV06332

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/07/2026 - 10:00

Nature of Proceedings

Motion to Compel

Tentative Ruling

For all reasons stated herein, plaintiff's motion for order compelling further answers to deposition questions is granted in part as set forth in this ruling. The court denies the request for monetary sanctions. The motion is otherwise denied.

Background:

On November 13, 2024, plaintiff Ivan Zuniga Hernandez initiated this action by filing a complaint. As alleged in the complaint, on June 2, 2023, at the intersection of Carrillo Street and Miramonte Drive in Santa Barbara, defendant Judith Share Bay, while intoxicated by drugs and alcohol, caused her vehicle to collide with a bicycle operated by plaintiff thereby causing plaintiff to sustain personal injuries and damages. (Complaint, ¶¶ MV-1, MV-2, & GN-1.) Plaintiff asserts two causes of action for (1) motor vehicle and (2) general negligence. (Ibid.) The complaint includes a prayer for punitive damages. (Complaint, ¶¶ EX-1 & EX-2.)

As argued by plaintiff in this discovery motion, after a night out drinking with friends, defendant made an illegal left turn and hit plaintiff on his bicycle causing his body to fly up onto the hood and break her windshield. As argued by plaintiff, at almost twice the legal limit of alcohol (0.147 percent BAC) defendant fled the scene and left plaintiff on the pavement. Plaintiff argues that defendant's impairment by alcohol may have been exacerbated by an interaction with prescription medication. Plaintiff argues that defendant pled no contest (nolo contendere) in a criminal proceeding pertaining to impaired driving on the night in question but this plea does not establish collateral estoppel in this civil proceeding on this issue, requiring plaintiff to obtain evidence through discovery as to the issue of impaired driving. (See *Teitelbaum Furs, Inc. v. Dominion Ins. Co.* (1962) 58 Cal.2d 601, 605.)

On December 23, 2024, defendant filed an answer to the complaint, generally denying its allegations and asserting twenty-five affirmative defenses. As argued by defendant in opposition to this discovery motion, the incident occurred in complete darkness at approximately 10:25 p.m. The roadway had streetlights but was not well lit. Due to overgrown trees and long distances between streetlights, there were long stretches of roadway in deep shadow. This, combined with plaintiff's dark clothing, dark bicycle, no reflectors, and no headlight, made plaintiff effectively invisible. Additionally, according to defendant, the issue of speed was entirely upon plaintiff. Defendant argues that her vehicle had come to a complete stop before impact occurred. Thus, the circumstance of plaintiff breaking the windshield of the vehicle was due to plaintiff's excessive speed traveling down a steep roadway.

According to defendant, the investigating police rejected a hit-and-run allegation based upon the review of all facts. As argued by defendant, defendant could not find a convenient location to turn around on a winding, narrow, curving road. To complicate the matter, the two middle-aged women in the vehicle were concerned for their safety because they were being followed aggressively by a male individual. Once they were able to turn around, that individual left the scene and the ladies felt safe returning to the intersection where the accident occurred.

On September 25, 2025, plaintiff filed this motion for an order compelling defendant to provide further responses to certain deposition questions that were unanswered or improperly objected to by defendant. Defendant also seeks an award of monetary sanctions of \$10,000 payable to the court "to uphold the integrity of the judicial system and to deter such conduct in the future." (Motion, p. 6, l. 12.) Defendant opposes the motion.

Analysis:

(1) Standard for Discovery

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010) ... by taking in California the oral deposition of any person, including any party to the action." (Code Civ. Proc., § 2025.010.) "Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.) "A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery" (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 540.)

Plaintiff's motion is made pursuant to Code of Civil Procedure section 2025.480. "If a deponent fails to answer any question ... the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480, subd. (a).)

(2) Questions One through Three

Questions one through three pertain to the issue of defendant taking a medication, Prozac, on the day in question, including the change in dosage, whether defendant had been informed by her doctor of potential consequences of taking Prozac while consuming alcohol, and the contact information of the prescribing physician. (Pltf. Sep. Stat., p. 2, l. 11 – p. 8, l. 26.) The discussion on the record indicates that counsel for plaintiff wanted to ask questions about these issues because of the potential interaction between this medication and alcohol on the night the accident occurred.

The operative complaint in this action alleges that defendant consumed alcohol and drugs while operating a vehicle and that these circumstances contributed to the accident. This line of questioning is reasonably calculated to obtain admissible evidence as to a claim in this action. (Code Civ. Proc., § 2017.010.) The issue of privacy could be addressed by a protective order. Defendant has not filed a motion for protective order. The court will grant the motion as to questions two and three (Bay Depo., p. 13, ll. 10-11, p. 14, ll. 22-24). However, question one seeks information pertaining to any change in medication dosage after the accident occurred. The dosage of this medication after the accident occurred is not probative of any claims or defenses in this action. The court will deny the motion as to question one.

(3) Questions Four and Five

Questions four and five pertain to any history of consumption of alcohol by defendant while driving a vehicle. (Pltf. Sep. Stat., p. 9, l. 1 – p. 11, l. 7.) The complaint alleges that defendant has a history of drinking and driving. The complaint seeks exemplary or punitive damages on the basis that defendant willfully consumed alcohol and drugs to the point of intoxication on the day of the accident. This line of questioning is reasonably calculated to obtain admissible evidence as to the issue of punitive damages, provided the questioning is limited to a relevant timeframe before the accident. The court finds that a period of one year before the accident (as indicated in question five) is probative of the issue of exemplary or punitive damages. The court will grant the motion as to question five (Bay Depo., p. 22, ll. 21-22). The court will deny the motion as to question four, which was not limited to a reasonable timeframe before the accident.

(4) Question Six

Question six pertains to defendant allegedly using the “F-word” repeatedly at the scene of the accident. (Pltf. Sep. Stat., p. 12, l. 9 – p. 13, l. 25.) Defendant’s conduct at the scene of the accident is relevant to the issue of intoxication. However, question six lacks foundation and is argumentative. The court will sustain these objections by counsel for defendant. The court will deny the motion as to question six.

(5) Question Seven

Question seven pertains to questions about potential witnesses. (Pltf. Sep. Stat., p. 13, l. 27 – p. 15, l. 16.) Discovery as to potential fact witnesses is permitted at deposition. (Code Civ. Proc., § 2017.010.) The court will grant the motion as to question seven (Bay Depo., p. 55, ll. 11.)

(6) Questions Eight and Nine

Question eight pertains to whether defendant consulted an expert as to blood alcohol level and whether plaintiff accepts even one percent of responsibility for the accident. (Pltf. Sep. Stat., p. 15, l. 18 – p. 17, l. 16.) The court will deny the motion as to questions eight. The court sustains the objections as to question eight as argumentative, lacking foundation, and asking for an improper opinion. The court will grant the motion as to question nine (Bay Depo., p. 93, ll. 15-18). The issue of whether plaintiff is responsible for the accident is reasonably calculated to obtain admissible evidence.

(7) Question Ten

Question ten asks for clarification as to why defendant previously testified that it was "stupid" to drink wine on the day in question and drive a vehicle. This line of questioning is reasonably calculated to obtain admissible evidence on the issue of exemplary or punitive damages. The court will grant the motion as to question ten (Bay Depo, p. 96, l. 8).

(8) Improper Speaking Objections (Questions One through 13)

The court has reviewed the deposition testimony and agrees with plaintiff that defense counsel must not state speaking objections. Where feasible, counsel must simply state an objection, followed by the basis for the objection (e.g., argumentative, lacks foundation, calls for speculation, etc.). The court will grant the motion as to questions two (Bay Depo., p. 20, l. 24), question four (Bay Depo., p. 25, ll. 17-19), question five (Bay Depo., p. 26, ll. 6-7), question six (Bay Depo., p. 31, ll. 4-5), question nine (Bay Depo., p. 38, ll. 12-14), question ten (Bay Depo., p. 87, ll. 15-17), question twelve (Bay Depo., p. 94, ll. 11-12) question thirteen (Bay Depo., p. 99, ll. 17-19), and compel further answers to these questions without speaking objections. The motion is otherwise denied as to these issues. If further speaking objections are asserted in deposition, the court would entertain a motion for monetary sanctions and would be inclined to grant the motion if this conduct continues. Counsel for the parties shall conduct themselves at depositions as if they were in court and shall not argue with one another while conducting a deposition.

(9) Evasive Answers (Questions One through Three)

The court has reviewed the deposition testimony and agrees with plaintiff that defendant must provide further, non-evasive answers to questions one through three (Bay Depo., p. 13, ll. 8-9, p. 14, ll. 22-24, and p. 26, ll. 14-16.) These questions are reasonably calculated to lead to admissible evidence and properly stated as to form. The court will grant the motion as to questions one through three (see *ibid.*) and compel further, non-evasive answers from defendant.

(10) Monetary Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.480, subd. (j).) Defendant requests monetary sanctions against plaintiff to deter further discovery misconduct.

"Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.) Defendant, as the moving party, has the burden on the issue of monetary sanctions. (Evid. Code, § 500.) "Evidence received at a law and motion hearing must be by declaration or request for judicial notice ... unless the court orders otherwise for good cause shown." (Cal. Rules of Court, rule 3.1306(a).)

Here, defendant did not provide evidence of any expenses defendant incurred as a result of the alleged discovery misconduct. (See Declaration of Robert J. Stoll, Jr.) The court is unable to award a remedial monetary sanction based on evidence. The court will deny the request for monetary sanctions.

(11) Additional Deposition

To avoid any prejudice, plaintiff may examine defendant on the questions as set forth herein and ask reasonable follow-up questions as to these issues. The court anticipates the additional deposition should take no more than three hours on the record.

Judges

Judge Donna D. Geck

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